

7. WELLS FARGO BANK, N.A. v. MATLOCK, 25CV1802**Motion to Deem Matters Admitted**

On January 21, 2026, plaintiff Wells Fargo Bank, N.A. (“plaintiff”) filed its motion to deem matters admitted. Proof of service, also filed January 21, 2026, shows the moving papers were served upon defendant Caleb Matlock (“defendant”) via mail that same day.

Defendant filed no opposition to the motion.

A party served with requests for admission must serve a response within 30 days. (Code Civ. Proc., § 2033.250.) Failure to serve a response entitles the requesting party, on motion, to obtain an order that the genuineness of all documents and the truth of all matters specified in the requests for admission be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) When such a motion is made, the court must grant the motion and deem the requests admitted unless it finds that prior to the hearing, the party to whom the requests for admission were directed has served a proposed response that is in substantial compliance with the provisions governing responses. (Code Civ. Proc., § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776, 778; see also *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395–396 [“two strikes and you’re out”].)

In this case, plaintiff’s counsel declares that Request for Admissions (Set One) was served upon defendant on August 28, 2025.⁴ Accordingly, defendant’s deadline to serve his verified response was October 6, 2025 (30 calendar days, extended by five calendar days for mail service; the five-day extension fell on Saturday, October 4, 2025). (Code Civ. Proc., §§ 1005, subd. (b), 2033.250, subd. (a).) As of January 21, 2026, defendant had served no response. (Lopez Decl., ¶ 5.)

⁴ Plaintiff does not indicate the method of service. Thus, the court will assume the request was served via mail, which extends defendant’s response deadline the longest, five calendar days (the court notes that defendant’s service address is within the State of California). (Code Civ. Proc., § 1005, subd. (b).)

The court grants plaintiff's motion to deem matters admitted.

TENTATIVE RULING # 7: PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED IS GRANTED. THE TRUTH OF ALL MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS (SET ONE) ARE DEEMED ADMITTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.